

See also: The Glorious Revolution and the English Bill of Rights 102–103 ■ The US Constitution and Bill of Rights 110–117
 ■ The Napoleonic Code 130–131 ■ The Universal Declaration of Human Rights 222–229

statesman Thomas Jefferson. The draft was presented to the Assembly on July 11, 1789, and after revision, it was accepted 6 weeks later.

The document was inspired by the ideas of the Enlightenment developed in France in the previous half-century. The new philosophy of Montesquieu, Rousseau, and Voltaire challenged the idea of the rule of a monarch by divine right, asserting a law of the rights of men derived not from religious authority but by rational thought.

Articles of the Declaration

In 17 articles and a preamble, the Declaration describes individual and collective rights for all men. The preamble emphasizes the principle that rights are “natural, inalienable, and sacred.” It also guarantees freedom of speech, freedom of the press, and freedom of religion.

The first article contains the heart of the Declaration, stating that “Men are born and remain free and equal in rights. Social distinctions can be founded only on the common

good.” The second article asserts that the primary duty of government is to look after the rights of man—his rights to liberty, property, safety, and resistance to oppression. The third states that the government’s authority depends on the consent of all. Article Four explains that liberty means the freedom to do anything that does no harm to others, while Article Five says the government can ban only those actions that are harmful to society. Article Six states that laws are the expression of the general will of the people.

The rest of the text goes on to define many rights that we now take for granted, including the principle that people are innocent until proven guilty. Indeed, these ideas, which seemed so radical at the time, are now so much a part of the fabric of the democratic world that to us they seem to be plain common sense.

Active and passive citizens

Despite the moral authority of the Declaration and its championing of equality, it conferred rights only on

A woman has the right to mount the scaffold. She must possess equally the right to mount the speaker’s platform.

Olympe de Gouges
The Declaration of the
Rights of Woman, 1791

“active” citizens. These were French free men over the age of 25 who paid a certain level of tax (in effect, property owners). Women, poor men, and slaves were “passive” citizens. But as the Revolution progressed, they, too, demanded to be included. In 1790, Nicolas de Condorcet and Etta Palm d’Aelders called for the National Assembly to recognize women’s rights. Their appeal was rejected, prompting playwright Olympe de Gouges to write her Declaration of the Rights of Woman and of the Female Citizen. “Woman is born free and remains equal to man in rights,” she claimed.

The original Declaration also inspired the first successful slave uprising by slaves in the French colony of Saint-Domingue, now Haiti. Slavery was abolished in France and its colonies in 1794. ■

The Tennis Court Oath was sworn by the National Assembly of the Third Estate on June 20, 1789. They vowed “not to separate” until a written constitution had been established for France.

